

26TRCV00427 26TRCV00427

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CE%2C07%2F15%2F2026

Source SHA-256: 8da246b03a5206f5da871493285c1665b4c409a270388eccd6f9e35fe2b159d9

Case Number: 26TRCV00427 Hearing Date: July 15, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

ALICJA

DZIKOWSKI

Plaintiffs,

Case No.:

26TRCV00427

vs.

[Tentative]

Sustained/denied

CITY OF

TORRANCE; ZENITH ENERGY WEST COAST TERMINALS LLC; ORANGE CORROSION SERVICES,
INC; CALIFORNIA TRAFFIC CONTROL SERVICES; ANTHONY GENOVA; and DOES 1 THROUGH
100, Inclusive;

Defendants.

Hearing

Date: July 15, 2026

Moving Parties: Cross-Defendant City of Torrance

Responding Party: Cross-Complainant Orange Corrosion
Services

HEARING: Demurrer with MTS

The Court considered the moving,
opposition, and reply papers.

RULING

The
Court sustains the Demurrer with leave to amend.

The Court denies the
Motion to Strike as moot.

BACKGROUND

On
February 2, 2024, Plaintiff Alicja Dzikowski filed the Complaint against
Defendants, City of Torrance, West Coast Terminals LLC, Orange Corrosion
Services Inc., California Traffic Control Services, and Anthony Genova,
alleging causes of action for dangerous condition of public property,
negligence, negligence per se, and premises liability.

On March 18, 2026, Cross-Complainant Orange Corrosion
Services filed the Cross-Complainant (CC) against Cross-Defendant City of
Torrance, alleging causes of action for equitable indemnity, contribution, and
declaratory relief.

On May 18, 2026, Cross-Defendant
filed the Demurrer and Motion to Strike.

On June 23, 2026, Cross-Complainant

filed the Opposition.

On July 8, 2026, Cross-Defendant
filed the Reply.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve

the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On May 7, 2026, the parties met and conferred by telephone regarding the Demurrer. Thus, the Court finds that Cross-Defendant has satisfied the meet and confer requirements.

Government Claims Act

Cross-Defendant argues the CC fails as a matter of law because public-entity liability is governed exclusively by the Government Claims Act, which abolishes all common-law tort liability against public entities and permits liability only where expressly mandated by statute.

Cross-Defendant states that where a public entity is sued for an accident occurring on its property due to the condition of that property, the proper statutory cause of action is for dangerous condition of public property, not negligence.

Cross-Defendant contends that the CC is therefore deficient on its face because it premises Cross-Defendant's liability for equitable indemnity and contribution on a negligence theory rather than on a statutory dangerous condition of public property claim. Cross-Defendant notes that Plaintiff herself sued Cross-Defendant on only a single cause of action for dangerous condition of public property, yet Cross-Complainant seeks indemnity based on Cross-Defendant's alleged negligence, which is not a cognizable basis for liability against a public entity.

In opposition, Cross-Complainant argues that the CC states cognizable claims for equitable indemnity, contribution, and declaratory relief because those claims are derivative of Plaintiff's own statutory dangerous condition of public property theory and do not seek to impose common-law negligence liability on Cross-Defendant.

Cross-Complainant contends that a defendant may seek partial equitable indemnity from concurrent tortfeasors based on comparative fault, and that the Supreme Court expressly extended those principles to governmental defendants.

Cross-Complainant also argues that Cross-Defendant's characterization of the CC as premised on negligence is

incorrect, noting that Plaintiff herself sued Cross-Defendant on a statutory dangerous condition of public property theory, and that the CC is derivative of that same statutory theory rather than an attempt to impose independent common-law liability. Cross-Complainant further contends that Government Code section 815 does not bar derivative indemnity and contribution claims arising from statutory dangerous-condition liability, as such claims are a remedial allocation mechanism among defendants rather than a source of new primary liability beyond what the statute permits.

“Under the Government Claims Act, there is no common law tort liability for public entities in California; instead, such liability must be based on statute.” (R.L. v. Merced City School Dist. (2025) 114 Cal.App.5th 89, 104.) However, a cross-claim for equitable indemnity and contribution can be brought against a public entity when it is based on a claim for dangerous condition of public property. (See County of Ventura v. City of Camarillo (1978) 80 Cal.App.3d 1019, 1024-1025.)

Here, the Complaint alleges a cause of action against Cross-Complaint for negligence and a cause of action against Cross-Defendant for dangerous condition of public property. What the Court must determine is whether the Cross-Complaint seeks indemnity based on a theory of dangerous condition of public property or negligence. The CC reads “Plaintiff’s underlying Complaint alleges personal injuries arising from an incident involving a changeable message sign (“CMS”) and/or dangerous conditions of public property located at or near Crenshaw Boulevard, north of 234th Street, in Torrance, California.” (CC ¶ 10.) “Cross-Complainant is informed and believes, and thereon alleges, that cross-defendants and each of them, so negligently, carelessly, and recklessly conducted themselves so as to cause the incident complained of in plaintiff’s complaint. Said negligent conduct on the part of these cross-defendants, and each of them, was the sole proximate cause of, and/or contributed to, the loss, damage, or injury alleged in plaintiff’s complaint.” (CC ¶ 12.) “If Cross-Complainant is held liable and responsible to plaintiff herein for damages as alleged in plaintiff’s complaint, it will be solely due to the conduct of cross-defendants herein, and each of them.” (CC ¶ 13.) Thus, while the CC notes that a dangerous condition of public property claim was brought against Cross-Defendant, the CC’s actual allegations against Cross-Defendant are that it acted negligently. Consequently, the Court finds that the indemnity and contribution claims are based on a theory of negligence and thus are improper. Furthermore, because the Court has struck the first two claims, there is no live controversy on which to base the declaratory relief

claim.

Therefore, the Court sustains the Demurrer with leave to amend.

Motion to Strike

Cross-Defendant requests that the Court strike the requests for attorneys' fees from the CC. However, as all causes of action have been successfully demurred to, the Motion to Strike is moot.

Therefore, the Court denies the Motion to Strike as moot.